

UK & EU Law, Explained Plainly

What the law actually says today

This is a general, plain-language overview, not legal advice, and law in this area is moving quickly. It is written UK and EU first, since that is where this project's own research is based, with a short note on other countries below.

- Property (Digital Assets etc) Act 2025**

Confirms that certain digital assets can be recognised as property in English law, an important foundation, but it does not by itself create automatic inheritance rights over social media, email, or AI-companion accounts.
- Wills Act 1837 still governs paper wills**

A valid will in England and Wales generally still requires a physical signed document witnessed by two people present at the same time. A "Statement of Wishes" produced by an online tool, including this one, does not meet that requirement on its own.
- UK GDPR and the Data Protection Act 2018**

Data protection rights are personal and generally end when a person dies. This is part of why families often cannot simply request a deceased relative's private messages or account content by default.
- No UK equivalent of the US RUFADAA**

Several US states have a specific law (the Revised Uniform Fiduciary Access to Digital Assets Act) giving executors a clearer legal path to access digital accounts. The UK has no direct equivalent, so each platform's own terms of service currently control what happens to your account.
- EU AI Act, Article 50** Enforceable 2 Aug 2026

Requires AI systems, including chatbots, to clearly disclose to users that they are interacting with a machine, rather than a person. This is directly relevant to griefbots and should make disclosure the norm across the EU market from August 2026 onward.
- UK Online Safety Act extended to AI chatbots** Confirmed Feb 2026

Ofcom's remit was confirmed in February 2026 to extend to certain AI chatbot services. However, Ofcom has clarified this mainly covers user-to-user, search, and pornographic services, leaving it genuinely untested whether a private, one-to-one griefbot conversation falls within scope. This is an area to watch, not a settled protection.
- Beyond the UK and EU.** This page will grow to cover more jurisdictions over time. What research so far suggests is a consistent pattern rather than a solved problem: a 2024 Australian study found most users want control over their digital remains while distrusting the platforms holding them, closely mirroring the UK picture. A parallel look at India's postmortem privacy framework found the same unresolved tension between competing legal theories of whose interests survive death that also characterises UK and EU debate. If you are reading this outside the UK, treat everything above as background context rather than a description of your own local law.

OWN RESEARCH

The same paradox, found again in this project's own survey

National research from Harbinja et al. (2025) describes a "posthumous privacy paradox": people want control over their digital remains but rarely act on it. This project's own 80-person survey found exactly that pattern, in miniature, and something more hopeful alongside it.

12.5%

currently have a legal will

61%

would likely add a digital legacy section to one

31%

said today's survey made them more likely to write or update a will

In other words, most people have not acted yet, but a short, honest conversation about this topic appears to move some people from "haven't thought about it" toward "actually more likely to act," exactly what the tool below is for.

So what can you actually do today?

1. Make a list of your important accounts and decide, in general terms, what you would want to happen to each (memorialise, transfer, or delete).
2. Check whether each platform already offers a "legacy contact" or memorialisation setting, many major platforms do, quietly.
3. Write a proper, legally valid will with a solicitor, and consider adding a separate letter of wishes for digital assets and AI-related preferences alongside it.
4. Tell a trusted person your preferences directly. A conversation, backed up in writing, is often more useful in the short term than any single tool.

This page is a summary for general awareness only and is not a substitute for advice from a qualified solicitor, especially for anything involving cross-border assets, business accounts, or contested estates.

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Digital Legacy Hub

A free, standalone educational tool about digital accounts, digital property, and AI simulation of people after death, and what world traditions and the law currently say about it. Not a law firm, therapy service, or product endorsement.

About this tool. This site is an accompanying artefact for a Master's capstone project submitted at the London Interdisciplinary School, researching cross-cultural ethics of AI-powered digital resurrection tools and digital legacy planning. It is an educational awareness tool first and foremost, built to help you think and talk with people you trust. **It is not a substitute for legal advice.** For a legally valid will, speak with a qualified solicitor. See the [About page](#) for the full project description.